

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

SENATE BILL NO. 2057
(Judiciary Committee)
(At the request of the Supreme Court)

AN ACT to amend and reenact subsection 6 of section 12.1-32-08 and sections 27-03-05, 27-05.2-03, and 29-26-22 of the North Dakota Century Code, relating to court fees.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. AMENDMENT. Subsection 6 of section 12.1-32-08 of the North Dakota Century Code is amended and reenacted as follows:

6. When the restitution ordered by the court under subsection 1 is the result of a finding that the defendant issued a check or draft without sufficient funds or without an account, the court shall impose as costs the greater of the sum of ~~tentwenty~~ twenty dollars or an amount equal to twenty-five percent of the amount of restitution ordered. The costs imposed under this subsection, however, may not exceed one thousand dollars. The state-employed clerks of district court shall remit the funds collected as costs under this subsection to the state treasurer for deposit in the restitution collection assistance fund. The funds deposited into the restitution collection assistance fund are appropriated to the judicial branch on a continuing basis for the purpose of defraying expenses incident to the collection of restitution, including operating expenses and the compensation of additional necessary personnel. The state's attorneys and county-employed clerks of district court shall remit the funds collected as costs under this subsection to the county treasurer to be deposited in the county general fund.

SECTION 2. AMENDMENT. Section 27-03-05 of the North Dakota Century Code is amended and reenacted as follows:

27-03-05. Fees to be charged and collected by clerk of supreme court.

The clerk of the supreme court shall charge and collect in advance a fee of ~~one hundred twenty-five~~ two hundred fifty dollars upon the filing in the supreme court of the record in any cause upon appeal or upon the filing in the court of a petition in any cause seeking the exercise of the original court's jurisdiction. In addition to the fee required by this section, the clerk of the supreme court shall charge and collect any electronic filing processing fee established by court rule for any matter filed in an electronic format.

SECTION 3. AMENDMENT. Section 27-05.2-03 of the North Dakota Century Code is amended and reenacted as follows:

27-05.2-03. Fees to be charged by the clerk of the district court.

1. A clerk of the district court shall charge and collect the following fees in civil cases:
 - a. For filing a case for decision that is not a ~~small claims action~~ under subdivision b or e, ~~eightyone hundred sixty~~ dollars.
 - (1) ~~Fifteen~~ Thirty dollars of this fee must be paid by the clerk of court to the state treasurer for deposit in the civil legal services fund. Any fees collected under this paragraph which exceed ~~seven hundred fifty thousand~~ nine hundred thousand dollars in any biennium must be paid by the clerk of court to the state treasurer for deposit in the state general fund.

- (2) ~~For the filing of a petition for dissolution of marriage, annulment, or separation from bed and board, fifty dollars of this fee must be paid by the clerk of court to the state treasurer for deposit in the displaced homemaker account created by section 14-06.1-14 and fifteen dollars of this fee must be paid by the clerk of court to the state treasurer for deposit in the state general fund.~~
- (3) ~~For all other filings, sixty-five~~One hundred thirty dollars of this fee must be paid by the clerk of court to the state treasurer for deposit in the state general fund.
- b. For filing a petition for dissolution of marriage, annulment, or separation, one hundred sixty dollars.
 - (1) Thirty dollars of this fee must be paid by the clerk of court to the state treasurer for deposit in the civil legal services fund. Any fees collected under this paragraph which exceed nine hundred thousand dollars in any biennium must be paid by the clerk of court to the state treasurer for deposit in the state general fund.
 - (2) One hundred dollars of this fee must be paid by the clerk of court to the state treasurer for deposit in the displaced homemaker account under section 14-06.1-14.
 - (3) Thirty dollars of this fee must be paid by the clerk of court to the state treasurer for deposit in the state general fund.
- c. For filing an answer to a case that is not a small claims action other than under subdivision d or e, fiftyone hundred dollars. The clerk shall deposit this fee with the state treasurer for deposit in the general fund in the state treasury.
- d. For filing a motion to modify an order for spousal support, property division, child support, parental rights and responsibilities, residential responsibility, parenting time, one hundred sixty dollars. For filing an answer to a motion to modify an order for spousal support, property division, child support, parental rights and responsibilities, residential responsibility, or parenting time, one hundred dollars. The clerk shall deposit this fee with the state treasurer for deposit in the general fund of the state treasury.
- e.e. For filing a small claims action in district court, tentwenty dollars.
- d.f. For filing any matter authorized to be filed in the office of the clerk of court other than under subdivision a, b, or c, tentwenty dollars.
- e.g. For preparing, certifying, issuing, or transmitting any document, tentwenty dollars, or a lesser fee as may be set by the state court administrator.
- f. ~~For filing a motion or an answer to a motion to modify an order for alimony, property division, child support, or child custody, thirty dollars. The clerk shall deposit this fee with the state treasurer for deposit in the general fund of the state treasury.~~
2. Section 27-01-07 applies to fees charged under this section. The clerk of court may not charge or collect any fee, prescribed by this or any other section, from the state or an agency thereof or from a political subdivision or agency thereof.

SECTION 4. AMENDMENT. Section 29-26-22 of the North Dakota Century Code is amended and reenacted as follows:

29-26-22. Judgment for fines - Court administration fee - Community service supervision fee - Special funds - Docketing and enforcement. (Retroactive application - [See note](#))

1. In all criminal cases except infractions, upon a plea or finding of guilt, the court shall impose a court administration fee in lieu of the assessment of court costs. The court administration fee must include a fee of one hundred twenty-five dollars for a class B misdemeanor, two hundred

dollars for a class A misdemeanor, four hundred dollars for a class C felony, six hundred fifty dollars for a class B felony, and nine hundred dollars for a class A or AA felony.

2. In addition, in all criminal cases except infractions, ~~the court administration fee must include~~ the court shall impose an indigent defense and court facilities fee of one hundred dollars. Of the additional one hundred dollar court administration fee, the first seven hundred fifty thousand dollars collected per biennium must be deposited in the indigent defense administration fund, which must be used for indigent defense services in this state, and the next four hundred sixty thousand dollars collected per biennium must be deposited in the court facilities improvement and maintenance fund. After the minimum thresholds have been collected, one-half of the additional court administration fee must be deposited in each fund.
3. In addition to any ~~court administration~~ fees that may be imposed under subsections 1 and 2, the court shall impose upon each defendant who receives a sentence that includes community service a community service supervision fee of twenty-five dollars. The community service supervision fee must be deposited in the community service supervision fund. The fees deposited in this fund must be used to provide community service supervision grants subject to legislative appropriations.
4. A court may waive the ~~court administration fee, indigent defense and court facilities fee,~~ or community service supervision fee upon a showing of indigency as provided in section 25-03.1-13. District court administration fees, exclusive of amounts deposited in the indigent defense administration fund and the court facilities and improvement fund, and forfeitures must be deposited in the state general fund. A judgment that the defendant pay a fine or fees, or both, may be docketed and if docketed constitutes a lien upon the real estate of the defendant in like manner as a judgment for money rendered in a civil action. The court may allow the defendant to pay any assessed administration fee or community service supervision fee in installments. When a defendant is assessed administration fees or a community service supervision fee, the court may not impose at the same time an alternative sentence to be served if the fees are not paid.
5. Upon successful completion of an approved adult drug court program, a court may waive all unpaid fines, fees, and costs imposed in the criminal judgment sentencing the defendant to the drug court program, except for restitution. For purposes of this subsection, "approved drug court program" means a district court-supervised treatment program approved by the supreme court.

President of the Senate

Speaker of the House

Secretary of the Senate

Chief Clerk of the House

This certifies that the within bill originated in the Senate of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as Senate Bill No. 2057.

Senate Vote: Yeas 44 Nays 3 Absent 0

House Vote: Yeas 64 Nays 24 Absent 6

Secretary of the Senate

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State